



AROR UNIVERSITY
OF ART, ARCHITECTURE,
DESIGN & HERITAGE,
SUKKUR, SINDH

POWER DISTRIBUTION BETWEEN FEDERAL AND PROVINCIAL GOVERNMENTS IN PAKISTAN

HABIB ALI

INTRODUCTION

- Pakistan follows a federal system of government.
- The 1973 Constitution clearly outlines the powers and responsibilities of the federal and provincial governments.
- The 18th Constitutional Amendment (2010) significantly altered this balance by devolving power to provinces.
- **Constitutional Framework**
- The Constitution classifies power distribution through:
 - **Federal Legislative List (Part I & II)**
 - **Provincial Powers**
 - **Concurrent Legislative List (47 Subjects)** abolished in 2010.



FEDERAL LEGISLATIVE LIST (PART I & II)

- **PART I:**
 - It contains **matters** exclusively under federal control.
 - **Examples:**
 - Defence
 - Foreign Affairs
 - Currency and Monetary Policy
 - Atomic Energy
 - International Trade
- **Part II:**
 - It includes areas under the **Council of Common Interests (CCI)**.
 - **Examples:**
 - Electricity, oil, & National Planning.



COUNCIL OF COMMON INTERESTS (CCI)

- It is a **constitutional body** under **Article 153**.
- It ensures coordination between the federation & provinces.
- **Key functions:**
 - To resolve federal-provincial disputes
 - To supervise Part II subjects of the Federal List
 - To approve national policies.
 - It is headed by the Prime Minister; includes Chief Ministers & 3 federal ministers.



PROVINCIAL POWERS

- Before 2010, both federal & provincial governments could legislate on **Concurrent List** subjects.
 - **The 18th Amendment:**
 - Abolished the **Concurrent List**
 - Shifted **47 subjects** fully to provinces
 - Strengthened **provincial autonomy**
- After the **18th Amendment**, provinces gained autonomy over:
 - Education
 - Health
 - Culture
 - Local Government
 - Agriculture
 - Environment
 - Etc.....



NATIONAL FINANCE COMMISSION (NFC) AWARD

- **Article 160** mandates the formation of the **NFC Award** every 5 years.
 - Distributes federal revenue (taxes) between:
 - Federal Government
 - Four Provinces
- **Last NFC Award (7th – 2010):**
 - Increased provincial share from **47.5% to 56%**
 - Criteria: Population, poverty, revenue collection, inverse population density
- **Reasons of Delay:**
 - **unanimous consensus** between the federal government and all four provinces.
 - Provinces and the federal government often **disagree over revenue sharing** formulas, especially on:
 - Population vs. need-based distribution
 - Revenue collection disparities
 - Security and development costs



TOTAL NFC AWARDS

Awards listing order (s)	NFC Award Listing(s)	Presented by	Projected <u>Fiscal year</u>
First	NFC Award 1974	<u>Zulfikar Ali Bhutto</u>	<u>1974–79</u>
Second	NFC Award 1979	<u>Zia-ul-Haq</u>	<u>1979–84</u>
Third	NFC Award 1985	<u>Zia-ul-Haq</u>	<u>1985–90</u>
Fourth	NFC Award 1991	<u>Navaz Sharif</u>	<u>1991–96</u>
Fifth	NFC Award 1995	<u>Benazir Bhutto</u>	<u>1995–2000</u>
	NFC Award 1997	<u>Navaz Sharif</u>	<u>1997–2002</u>
Sixth	NFC Award 2002	<u>Pervez Musharraf</u>	<u>2002–07</u>
Seventh	NFC Award 2010	<u>Yousaf Raza Gillani</u>	<u>2010–15</u>



CONCLUSION

- Pakistan's power-sharing model is constitutionally structured and evolved.
- Federal government handles national & international affairs.
- Provinces handle local and regional governance.
- The 18th Amendment was a major step toward decentralization.
- Coordination mechanisms like CCI and NFC are vital for cooperative federalism.





Thank you for your time and attention!

Hopefully, I will see you in the next class. Until then, take care, & have a great day!

